

Translated from Lithuanian

REPUBLIC OF LITHUANIA
LAW ON EQUAL TREATMENT

18 November 2003 – No IX-1826

Vilnius

(As last amended on 17 June 2008 – No X-1602)

SECTION ONE
GENERAL PROVISIONS

Article 1. Purpose of the Law

The purpose of this Law shall be to ensure the implementation of the provisions of Article 29 of the Constitution of the Republic of Lithuania enshrining the equality of persons and prohibition against restrictions on human rights or extensions of privileges on the grounds of gender, race, nationality, language, origin, social status, belief, convictions or views, as well as the implementation of the provisions of legal acts of the European Union referred to in the Annex to this Law and of other international legal acts.

Article 2. Definitions

1. Discrimination means any direct or indirect discrimination, harassment, instruction to discriminate on the grounds of gender, race, nationality, language, origin, social status, belief, convictions or views, age, sexual orientation, disability, ethnic origin or religion.

2. Ethos means the sum total of beliefs, values, moral attitudes and traditions determining the behaviour or standards of behaviour of a person or a group of persons.

3. Equal treatment means the implementation of human rights enshrined in international instruments on human and civil rights as well as laws of the Republic of Lithuania irrespective of gender, race, nationality, language, origin, social status, belief, convictions or views, age, sexual orientation, disability, ethnic origin or religion.

4. **Indirect discrimination** means any act or omission, legal provision or assessment criterion, apparently neutral provision or practice that formally are the same but their implementation or application results or would result in *de facto* restrictions on the exercise of rights or extensions of privileges, preferences or advantages on the grounds of gender, race, nationality, language, origin, social status, belief, convictions or views, age, sexual orientation, disability, ethnic origin or religion, unless that act or omission, legal provision or assessment criterion, provision or practice is justified by a legitimate aim and the means of achieving that aim are appropriate and necessary.

5. **Harassment** means any unwanted conduct which occurs with the purpose, or effect, of violating the dignity of a person, and of creating an intimidating, hostile, humiliating or offensive environment on the grounds of gender, race, nationality, language, origin, social status, belief, convictions or views, age, sexual orientation, disability, ethnic origin or religion.

6. **Social status** means education or qualification acquired by a natural person or his studies at research and education establishments, his property, income, need for state support provided for in legal acts and/or other factors related to the financial/economic situation of the person.

7. **Direct discrimination** means any situation where one person is treated less favourably than another is, has been or would be treated in a comparable situation on the grounds of gender, race, nationality, language, origin, social status, belief, convictions or views, age, sexual orientation, disability, ethnic origin or religion, except for the following cases:

1) restrictions on the grounds of age as established by laws where it is justified by a legitimate aim, and the means of achieving that aim are appropriate and necessary;

2) requirement to know the state language as established by laws;

3) prohibition of participation in political activities in the cases specified by laws;

4) different rights applied on the basis of citizenship as established by laws;

5) special measures in the field of health care, safety at work, employment, labour market as established by laws with the view of creating and applying conditions and opportunities guaranteeing and promoting integration into the working environment;

6) special temporary measures, as established by laws, which are taken to ensure equality and prevent violation of equal treatment on the grounds of gender, race, nationality, language, origin, social status, belief, convictions or views, age, sexual orientation, disability, ethnic origin or religion;

7) where, by reason of the nature of the particular occupational activities concerned or of the context in which they are carried out, a particular human characteristic constitutes an essential and determining occupational requirement, provided that the aim is legitimate and the requirement is proportionate;

8) where the legal regulation of restrictions, special requirements or certain conditions relating to the social status of a person is justified by a legitimate aim, and the means of achieving that aim are appropriate and necessary;

9) organisation of separate sports competitions for the disabled.

8. An instruction to discriminate against a person on the grounds of gender, race, nationality, language, origin, social status, belief, convictions or views, age, sexual orientation, disability, ethnic origin or religion shall be deemed to be discrimination within the meaning of paragraphs 4 and 7 of this Article.

Article 3. Exemptions from the Provisions of this Law

The provisions of this Law shall not apply to:

1) family and private life;

2) employees or staff of religious communities, associations and centres, as well as of legal persons established by them for serving the purposes of the same religion (hereinafter referred to as “religious communities and associations”), and of organisations established by them or their members, the founding documents or equivalent documents of which specify that their ethos is based on religion or belief, as well as requirements for religion teachers of traditional religious communities and associations where, by reason of the nature of their activities or of the context in which they are carried out, requirements regarding a person’s religion, belief or convictions constitute a genuine, legitimate and justified requirement, having regard to the ethos of the said organisations;

3) cases where religious communities and associations, as well as organisations established by them or their members, the founding documents or equivalent documents of which specify that their ethos is based on religion or belief, supply products, goods and services for religious or belief purposes;

4) the admission of persons to study at schools of religious communities and associations, schools established by them or their members, as well as establishments, enterprises and organisations whose main activity is other than academic education, which have been established with the purpose of education in an environment fostering the